
Notice of Delay — Unforeseen Utility Conflict at Pier P3

Nandira River Bridge Project — Package NRB-4

Document Reference:	CTR-NRB4-0021
Date:	10-Feb-2021
Contract No.:	NHIA/NRB4/CW/2020-01
From:	Contractor, Project Manager, Sagara Constructions Pvt. Ltd.
To:	Engineer, Meridian Engineering Consultants

Subject: Notice of Delay — Unforeseen Utility Conflict, Pier P3 — Nandira River Bridge Project, Package NRB-4

We write further to the discovery on 28-Jan-2021, recorded in Daily Progress Report DPR-0128-2021, of a transmission tower foundation within the excavation footprint for Pier P3. This structure is not shown on the Drawings issued for construction, nor on the Utility Drawings referred to in Employer's Requirements Section 8.

Pursuant to Sub-Clause 20.1 of the Conditions of Contract, we hereby give notice that this event constitutes a cause of delay for which we consider the Contractor entitled to an extension of the Time for Completion under Sub-Clause 8.4(c), being an act, omission or default attributable to the Employer's side in respect of the completeness of utility information provided with the tender documents.

Excavation and pile cap works at Pier P3 remain suspended in the affected quadrant pending confirmation from the relevant utility owner as to the nature of the structure and any relocation required. We are keeping contemporaneous records of the resulting impact on our programme in accordance with Sub-Clause 20.1 and will submit fully detailed particulars within 42 days of this notice, in accordance with the Contract.

We reserve our rights to claim an extension of time and any associated cost consequences arising from this event.

Regards,
Project Manager

Sagara Constructions Pvt. Ltd.